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Case Number: 26VECV02994 Hearing Date: August 31, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JONATHAN MOULTON, an individual,

Plaintiff,

vs.

GK MANAGEMENT CO., INC., a California corporation; MILTON MANCIA, an individual; and DOES 1-100 inclusive,

Defendant.

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ORDER GRANTING DEFENDANT GK MANAGEMENT CO., INC.'S MOTION TO COMPEL ARBITRATION

Plaintiff Jonathan Moulton ("Plaintiff") brings this employment action against Defendants GK Management ("GK") and Milton Mancía ("Mancía") (jointly, "Defendants"). Plaintiff alleges he was employed by Defendants as a non-exempt employee and that Defendants violated labor laws.

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On January 24, 2025, Plaintiff filed a Complaint alleging (1) Failure to Pay Overtime Compensation; (2) Failure to Pay Minimum Wage; (3) Failure to Provide Meal Periods; (4) Failure to Provide Rest Breaks; (5) Failure to Pay Wages Due Upon Termination; Waiting Time Penalties; (6) Failure to Issue Accurate and Itemized Wage Statements; (7) Failure to Indemnify; and (8) Unlawful Business Practices in Violation of CA BP Code 17200.

On July 27, 2026, GK filed the instant Motion to Compel Arbitration.

On August 18, 2026, Plaintiff filed an Opposition.

On August 24, 2026, GK filed a Reply.

III. LEGAL STANDARD

Parties may be compelled to arbitrate a dispute upon the court finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (See Code Civ. Proc. § 1281.2.) [1] California law favors enforcement of valid arbitration agreements. (See *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.) A party petitioning to compel arbitration has the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition has the burden of proving, by a preponderance of the evidence, any fact necessary to its defense. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356-357.)

"If a court of competent jurisdiction . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc. § 1281.4.)

"California courts traditionally have maintained a strong preference for arbitration...To this end, arbitration agreements should be liberally construed, ... with doubts concerning the scope of arbitrable issues being resolved in favor of arbitration." (*Market Ins. Corp. v. Integrity Ins. Co.* (1987) 188 Cal.App.3d 1095, 1098 (cleaned up).)

California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act ("FAA"), including a presumption in favor of arbitrability. (See *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 971-972.)

"The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement." (*Avila v. Southern Cal. Specialty Care, Inc.* (2018) 20 Cal.App.5th 835, 844.)

The party opposing the petition to compel arbitration bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (See *Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1284.) Accordingly, under both the Federal Arbitration Act and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (See *Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.)

In deciding a motion to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties and then determine whether the claims are covered within the scope of the agreement. (See *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.)

IV. ANALYSIS

A. Delegation Clause

"Parties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement. [Citation.] They 'can agree to arbitrate almost any dispute—even a dispute over whether the

underlying dispute is subject to arbitration.” (Tiri v. Lucky Chances, Inc. (2014) 226 Cal.App.4th 231, 241.) “There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.” (Id. at 242.)

“The law presumes that a delegation to an arbitrator of enforceability issues is ineffective absent clear and unmistakable evidence that the parties intended such a delegation.” (Id.) “As a general matter, where one contractual provision indicates that the enforceability of an arbitration provision is to be decided by the arbitrator, but another provision indicates that [a] court might also find provisions in the contract unenforceable, there is no clear and unmistakable delegation of authority to the arbitrator.” (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1197.)

GK argues Plaintiff signed a standalone Arbitration Agreement which clearly and unmistakably provides that the parties agreed to arbitrate gateway issues. GK argues the following provision provides that with the exception of the claims relating to class actions and/or PAGA actions, the arbitrator must decide “any legal dispute or controversy covered by this Agreement, or arising out of or relating to, or concerning the validity, enforceability or breach of this Agreement, shall be resolved by final and binding arbitration” (See Mot. at 5:16-20; Declaration of Sylvia Rubalcava filed July 27, 2026 (“Rubalcava Decl.”), ¶ 9, Ex. A, ¶ 4.)

The Court finds the delegation clause is clear and unmistakable. Here, the Arbitration Agreement provides “Employee and the Company agree that the arbitrator...is hereby delegated to resolve any dispute relating to the interpretation, arbitrability...or enforceability of this Agreement, including but not limited to any claim that all or any part of this agreement is void or voidable. Notwithstanding the foregoing...the Court...is hereby delegated to resolve any disputes relating to arbitrability and enforceability with respect to the provisions of this Agreement relating to class, collective and/or representative (including PAGA) claims, and any claims of sexual assault and/or sexual harassment.” (Id., ¶ 9, Ex. 4, ¶ 4 (emphasis added).) Although the arbitration agreement contains one provision specifying that an arbitrator may decide enforceability it also unambiguously delegates a limited number/type of claims for a court to resolve. Thus, the Court finds the delegation clause satisfies the first prerequisite for an effective delegation clause.

Second, Plaintiff does not argue that the delegation clause is unconscionable. Instead, Plaintiff “challenge[s] the enforceability of the agreement as a whole, not the delegation clause in particular” and thus the arbitrator must decide unconscionability and the agreement to arbitrate must be enforced. (See Nickson v. Shemran, Inc. (2023) 90 Cal.App.5th 121, 133.)

V. CONCLUSION

Based on the foregoing, the Court GRANTS GK’s Motion to Compel Arbitration.

The Court sets a Status Conference re: Arbitration on September 1, 2027, at 8:30 a.m. The parties are ordered to file a Joint Status Update by no later than August 25, 2026.

IT IS SO ORDERED.

DATED: August 31, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.